

25STCV36972 25STCV36972

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 25STCV36972 Hearing Date: August 12, 2026 Dept: 11

Hasley (25STCV36972)

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Tentative Ruling Re: Motion to Compel Arbitration

Date: 8/12/26

Time: 11:00 am

Moving Party: Exact Staff, Inc. ("ES")

Joinder: Dedicated Buildings Services, LLC ("DBS")

Opposing Party: Earl Deyon Hasley ("Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Defendant Exact Staff's motion to compel arbitration is granted.

BACKGROUND

ES is a staffing agency. The Court's understanding is that ES placed Plaintiff with DBS to work as a floor technician. Plaintiff alleges that ES and DBS jointly employed him and that they subjected him and other current and former employees to numerous wage-and-hour violations.

Here, ES moves to compel arbitration pursuant to ES's arbitration agreement.

DBS, a nonsignatory to ES's agreement, joins the motion.

The only issue in this motion is contract formation. That is, Plaintiff's only contention is that ES has failed to prove existence of a valid arbitration agreement; he is not asserting any defenses to enforcement of an arbitration agreement.

EVIDENTIARY OBJECTIONS

ES has interposed objections to passages of the declarations submitted by Plaintiff in opposition to the motion. All are overruled.

DISCUSSION

Plaintiff contends the motion to compel should be denied because he did not consent to arbitration, and ES and DBS (collectively "Defendants") fail to authenticate the e-signature. (See Opposition, pp. 4-8.)

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and . . . whether it is enforceable." (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413.) "[T]he threshold question . . . is whether there is an agreement to arbitrate." (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original.)

The determination of the existence of an arbitration agreement is a three-step process. "First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'" (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) "The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.'" (Ibid.) In the alternative, "the moving party can meet its burden by setting forth the agreement's provisions in the motion." (Ibid.)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Ibid.) "The opposing party can do this in several ways." (Ibid.) "For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.)

"If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.) "The burden of proving the agreement by a preponderance of the evidence remains with the moving party." (Id. at 165-166.)

Defendants pass the first step. A copy of ES's entire agreement is physically included with the moving papers. (See Smith Decl., Ex. A; see also Gamboa, supra, 72 Cal.App.5th at 165.)[1]

For the second step, Plaintiff declares that he does not recall viewing an arbitration agreement or signing one:

4. I generally remember the onboarding process when I began my employment. I recall being presented with several physical documents that my supervisor told me I was required to sign before starting work. I remember my supervisor telling me to sign the documents as quickly as possible so I could start my job. I do not recall ever getting copies of these documents.

5. I do not recall using a computer system or digitally signing any documents through DocuSign or any other electronic platform. Instead, I remember physically signing some documents on my first day and that is the only way I recall signing any onboarding documents. I do not remember being given access to a company computer or onboarding system.

6. I am not familiar with Karenjo Goodwin. I do not recognize that name, and I do not recall this person being present during my onboarding process.

7. I do not remember ever being presented with an Arbitration Agreement or agreeing to give my day up in Court. No one brought such an agreement to my attention, and even if they did, this is not something I would have agreed to. I do not think it is right that someone can give up their right to court. No one ever told me that our relationship was subject to arbitration during my entire employment either.

(Hasley Decl., ¶¶ 4-7.)

This recitation is sufficient to satisfy the second step. *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, instructs that an “individual’s inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so.” (*Iyere*, supra, 87 Cal.App.5th at 757.)

For the third step, ES must establish a valid arbitration agreement between Plaintiff and ES. Plaintiff challenges authentication. He claims the declaration of ES’s corporate representative is insufficient to show that he e-signed the agreement. (See Opposition, pp. 6-8.) Authentication of a document alleged to have been signed electronically may be established by evidence of the procedures and security features for obtaining assent to the agreement.

“Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law.” (Knight, Cal. Practice Guide: Alternative Dispute Resolution (The Rutter Group 2025) ¶ 5:321.1 [quoting Evidence Code section 1400].) “An ‘electronic signature is attributable to a person if it was the act of the person’ and this may be shown in any manner.” (Id. at ¶ 5:321.3.) “[A] party may establish that the electronic signature was ‘the act of the person’ by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.)

In the supplemental declaration of Gordon Smith, accompanying ES’s Reply memorandum, Defendant sets forth the company’s onboarding procedures, which include the Plaintiff creating his own unique user identification, password, and PIN. As he explains all applicants for employment register with the company on the Exact Staff website, and enter certain basic contact information. This process includes notification that if hired, the employee will be required to sign an arbitration agreement. (Smith Supp. Decl. ¶6.) A representative from Exact Staff communicates telephonically with the applicant, who is told to look for an email from Efficient Forms, the recruiting and onboarding company with which ES contracts. The email to the applicant directs her or him to a link created specifically for the applicant for the “broader application.” (Id. ¶¶ 7-8.)

The next steps include the process of the applicant’s acceptance of the arbitration agreement:

9. Upon entering the employment application, the applicant is required to enter a password of his/her own choosing and creation, and a PIN that he/she creates for himself/herself. To my knowledge, at no time does anyone at Exact Staff receive or have access to such password or PIN, and, certainly, no person at Exact Staff has access to an applicant’s personal email

account to which the Efficient Forms email was sent. Specifically for this matter, I have no reason to believe that Exact Staff has, or had at any time, Hasley's password (or passwords, if multiple) or PIN (or PINs, if multiple). I also have no reason to believe that Exact Staff had access to any email account in Hasley's possession or attributed to Hasley.

10. After creating his/her password and PIN, the applicant is directed to review additional onboarding documents, including the arbitration agreement, which is a standalone document to be reviewed. Thereafter, the applicant is presented with the arbitration agreement, among other documents, for a second time to review. After reviewing such documents multiple times, the applicant is asked to agree to the prescribed terms. If the applicant does not agree to such terms, the applicant cannot move forward with the registration, application, and onboarding process. When accepting the terms, the applicant is asked to input his/her unique PIN that he/she created and click a button indicating his/her acceptance. After such acceptance, the documents are date and time-stamped to reflect the date and time of simultaneous acceptance.

(Smith Supp. Decl. ¶¶ 9-10.)

Accordingly, ES argues, "Plaintiff could not have e-signed any documents (including the Agreement) without first reviewing all such documents, and he could take as much time as he needed to review all such documents (including the Agreement) and ask any questions (including of an attorney if he chose) before electronically signing them." This "process was the only way that Defendant obtained signatures on employee onboarding documents (including the Agreement) in 2024."

This evidence is sufficient to overcome Plaintiff's lack of recollection and establish the existence of a valid arbitration agreement between the parties.

BDS may also enforce the arbitration agreement.

In addition, BDS is entitled to enforce the arbitration agreement. The right of nonsignatories to enforce is well settled. (See *Knight*, supra, at ¶ 5:262.) The rule applies in several instances. (See id. at ¶¶ 5:263, 5:265.7, 5:266.5, 5:266.7, 5:266.15 [either when the nonsignatory is a third-party beneficiary, employee, associate, agent, or assign or when equitable estoppel applies]; see also *Marengo v. DirecTV LLC* (2015) 233 Cal.App.4th 1409, 1419-1420 [holding that "a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations"].) At least three (third-party beneficiary, agency, and equitable estoppel) appear applicable and support BDS's position. (See *Smith Decl.*, Ex. A, p. 1 [stating that the agreement applies to "all claims or controversies . . . that I may have against the Company or against its officers, directors, members, employees, agents, benefit plans and plan sponsors, or affiliated companies"], emphasis added; see also *First Amended Class Action and Representative Action Complaint*, ¶¶ 7-8, 10-14 [alleging that all Defendants were agents of each other and jointly employed Plaintiff]; see also *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 787-788 [applying the agency and equitable-estoppel examples in a joint-employer action]; *Knight*, supra, at ¶ 5:266.18a [discussing *Garcia*].)

Conclusion

Defendants' motion to compel arbitration is granted. Plaintiff's individual claims are ordered to arbitration under the terms of the arbitration agreement. Plaintiff's class claims are dismissed without prejudice. The action is stayed pending resolution of the arbitration. The court will set a post arbitration status conference at the hearing. ES shall give notice of this ruling.

[1] The moving party "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter" (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, emphasis in original), and the reviewing court "is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity." (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)